

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 13  
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk  
191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2240

**DATE: September 23, 2026      TIME: 10:00 A.M.**

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856  
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

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| LINE #                 | CASE #     | CASE TITLE                                  | RULING                                                                                     |
|------------------------|------------|---------------------------------------------|--------------------------------------------------------------------------------------------|
| <a href="#">LINE 1</a> | 18PR183626 | In the Matter of THE KING LIVING TRUST      | Motions for Sanctions<br><br>Ctrl Click (or scroll down) on Line 1 for tentative ruling.   |
| <a href="#">LINE 2</a> | 26PR201902 | In the Matter of THE BEVERLY P. RILEY TRUST | Motions to Change Venue<br><br>Ctrl Click (or scroll down) on Line 2 for tentative ruling. |

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## **Calendar Line 1**

**Case Name:** In the Matter of THE KING LIVING TRUST

**Case No.:** 18PR183626

### **INTRODUCTION**

At issue is beneficiary Stephen Russell King's ("King") opposed motion for sanctions against attorney Michael A. Gorini ("Gorini"). King brings this motion pursuant to Code of Civil Procedure section 128.7 and Probate Code section 17211. The motion is based on Beverly King and Claire Keyes's (collectively, "Co-Trustees") filing of the April 7, 2026 Petition for Settlement of First Account of Trustee and Approval of Attorney Fees and for Authority for Termination of Trust (the "Petition"). Co-Trustees are co-trustees of the King Living Trust for the benefit of Stephen Russell King (the "Sub-Trust").

On July 20, 2026, King served the following documents: (1) Beneficiaries' Notice of Motion to Surcharge Co-Trustees Beverly King and Claire Keyes for Breach of Fiduciary Duty; (2) Motion for Sanctions against, Co-Trustees' counsel of record, Attorney Michael A. Gorini ("Motion for Sanctions"). (Proof of Service, filed July 28, 2026.) On July 28, 2026 Co-Trustees filed an opposition to both motions. On August 12, 2026, King filed only the Motion for Sanctions. The court will therefore only address the merits of the Motion for Sanctions.

### **PROCEDURAL ISSUE**

King's motion is 28 pages long, which is well over the 15-page limit under California Rules of Court, rule 3.1113 ("Rule 3.1113"). Rule 3.1113 (d), which states "no opening or responding memorandum may exceed 15 pages." Rule 3.1113(e) expressly provides that a party "may apply to the court ex parte but with written notice of the application to the other parties, at least 24 hours before the memorandum is due, for permission to file a longer memorandum. The application must state reasons why the argument cannot be made within the stated limit." While the court exercises its discretion to consider the oversized Motion for Sanctions, the court admonishes King to comply with the California Rules of Court, Code of Civil Procedure, and other applicable statutes with respect to future filings. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806 [courts have a policy favoring disposition of cases on the merits rather than on procedural grounds].)

### **DISCUSSION**

#### **I. CO-TRUSTEES' REQUEST FOR JUDICIAL NOTICE**

In support of their opposition, Co-Trustees request judicial notice of the following documents pursuant to Evidence Code section 452, subdivision (d): (A) Petition for Order Approving Modification of Trust Terms and Instructions filed on May 23, 2018; (B) Order Approving Modification of Trust Terms and for Instructions filed on August 8, 2018; and (C) Petition for Settlement of First Account of Trustee and Approval of Attorney Fees and for Authority for Termination of Trust filed on April 6, 2026.

Exhibits A through C are court records in this action, and therefore proper subjects for judicial notice. (Evid. Code, § 452, subd. (d).) The request for judicial notice is GRANTED.

## II. SANCTIONS UNDER CODE OF CIVIL PROCEDURE SECTION 128.7

King contends that the Petition contained unsupported factual and legal contentions, and that by signing the same, Gorini violated Code of Civil Procedure section 128.7. Specifically, King argues that the Petition contained: (1) schedule labeling errors; (2) post-period attorney fees; (3) contradictions on whether attorney fees were paid; (4) a misstatement of the trust's fair market value to invoke Probate Code section 15408; (5) unexplained disbursements; (6) inflammatory accusations within the fee declaration; and (7) no itemized billing records.

Code of Civil Procedure section 128.7 provides in relevant part:

(b) By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:

(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

(3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

(Code Civ. Proc., § 128.7, subd. (b).) “A trial court is to apply an objective standard in making its inquiry concerning the attorney's or party's allegedly sanctionable behavior in connection with a motion for sanctions brought under section 128.7. [Citations.]” (*Optimal Markets, Inc. v. Salant* (2013) 221 Cal.App.4th 912, 921.) The moving party has the burden of showing that the party's conduct was objectively unreasonable. (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1205 (*McCluskey*).)

First, King contends that the Accounting Summary attached as Exhibit B to the Petition lists the trust liabilities as Schedule E, but the actual schedule is Schedule F. (Motion, p. 13:4-7.) Furthermore, paragraph 16 references a Schedule G that does not exist. King asserts that these errors are in violation of California Rules of Court, rule 7.575 and Probate Code section 1060, which require that accountings be clear, accurate, and internally consistent. Co-Trustees do not dispute these errors. That said, King does not contend that the figures within the accounting schedules are falsified, only that Co-Trustees made what appear to be typographical errors. Without more, the labeling inconsistencies and proofreading errors do not rise to the level of objectively unreasonable conduct prohibited by Code of Civil Procedure section 128.7.

Second, King highlights that the Petition includes four invoices that fall outside the February 8, 2017 through December 5, 2025 account period. (Motion, p. 14:17-23.) Paragraph 10 of the Petition acknowledges the inclusion and states that the liability schedule includes the costs of preparing the account and Petition. And as Co-Trustees argue in their opposition, “Attorneys hired by a trustee to aid in administering the trust are entitled to

reasonable fees paid from trust assets. Preparing the accounting and responding to the beneficiaries' objections to that accounting are aspects of trust administration." (*Kasperbauer v. Fairfield* (2009) 171 Cal.App.4th 229, 235.)

Third, King claims that the Petition is contradictory as to whether attorney fees have been paid. The Petition states both that compensation "has been paid to Co-Trustees' attorney during the account period" and that "All Attorney fees have been advanced by the trustees, in their individual capacity." (Motion, pp. 15:21-16:2; compare Petition, ¶ 13 with *id.*, Ex. B, Schedule F.) While the phrasing could have been clearer, the Petition is not contradictory. Taking the relevant portions of the Petition together, the Petition states that Co-Trustees' attorney has been paid, just by Co-Trustees in their individual capacity, rather than by the trust. King's reliance on Probate Code section 1064, subdivision (a)(3) does not change the analysis. The statute requires disclosure of compensation paid to attorneys, not compensation *paid from trust funds* to attorneys.

Fourth, King claims that the Petition misstates the Sub-Trust value to invoke Probate Code section 15408. The Petition represents that the Sub-Trust has a net liquid value of approximately \$140,000.00, which is not far off from the \$100,000.00 threshold set forth in Probate Code section 15408, subdivision (b).<sup>1</sup> Schedule D, however, shows ending Inventory and Estate on Hand of \$908,000.89 at carry value and \$1,093,000.89 at market value, both of which include the residence at 435 N. 9<sup>th</sup> Street. King contends that the Petition intentionally omits the residence from the analysis without providing any legal authority for doing so. While the Co-Trustees' failure to support the omission in the Petition and to address the argument is troubling, King has the burden of establishing that the excision of the residence's value is objectively unreasonable. (See *McCluskey*, *supra*, 56 Cal.App.5th at p. 1205.) The record does not reflect that King has carried his burden that no reasonable attorney would have advanced this argument after a reasonable inquiry.

Fifth, King argues that the following items on Schedule C lack any trust-administration basis: (1) "Vehicle repossession/impounded"; (2) "Car Insurance – The Hartford"; and (3) "Car Maintenance." (Motion, pp. 19:1-20:7.) Co-Trustees respond that fees associated with car maintenance were paid for King's use and benefits and constitute distributions for King's health, education, maintenance, and support ("HEMS"). (Opposition, p. 10:21-25; see Gorini Decl., Ex. A.) Counsel for Co-Trustees addressed this point in an email to King on June 10, 2026, stating, "The car distributions, like all of the distributions, have been made for your benefit... You are the beneficiary of the trust and have requested, repeatedly for car issues to be taken care of because they give you a benefit." (Gorini Decl., Ex. A.) A reasonable attorney could believe that these disbursements were proper HEMS distributions and that a detailed explanation was unnecessary for the Petition.

Sixth, King takes issue with the paragraph 23 and Exhibit C (Attorney's Services Declaration) of the Petition because it contains purportedly inflammatory, pejorative, and uncorroborated characterizations of King. (Motion, p. 20:15-16.) The fee declaration characterizes the circumstances giving rise to legal fees, and courts counsel against construing Code of Civil Procedure section 128.7 to conflict with an attorney's primary duty to zealously

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<sup>1</sup> Probate Code section 15408, subdivision (b) states, "if the fair market value of the principal of a trust does not exceed one hundred thousand dollars (\$100,000) in value, the trustee has the power to terminate the trust."

represent his or her client. (*Guillemín v. Stein* (2002) 104 Cal.App.4th 156, 168.) A reasonable attorney could have believed that the characterizations within Exhibit C were appropriate for a fee request.

Finally, King contends that the \$18,725 fee request is inappropriate because it is only supported by Gorini's narrative declaration, with no itemized entries. (Motion, p. 22:13-15.) Counsel for Co-Trustees provided itemized billing entries in an email to King on June 10, 2026. (Gorini Decl., Ex. A.) While the itemized records may have been inadvertently omitted, that is a correctable oversight, not sanctionable conduct. Without more, King does not meet his burden of demonstrating that Gorini acted objectively unreasonable in omitting the itemized billing entry.

Although the Petition contains typographical or clerical errors and analytical deficiencies, King has not established that the filing violated the objective reasonableness standard of Code of Civil Procedure section 128.7. King's motion for sanctions under Code of Civil Procedure section 128.7 is DENIED.

### III. ATTORNEY'S FEES UNDER PROBATE CODE SECTION 17211

King seeks an award of attorney's fees and costs under Probate Code section 17211 and contends that the prosecution of the Petition was without reasonable cause and made in bad faith.

Probate Code section 17211, subdivision (b) provides in relevant part, "If a beneficiary contests the trustee's account and the court determines that the trustee's opposition to the contest was without reasonable cause and in bad faith, the court may award the contestant the costs of the contestant and other expenses and costs of litigation, including attorney's fees, incurred to contest the account." Thus, where a trustee has reasonable cause to defend against a beneficiary's claim, an award of attorney's fees against the trustee is not authorized. (*Uzyel v. Kadisha* (2010) 188 Cal.App.4th 866, 878-879 (*Uzyel*).)

As an initial matter, the court notes that King is proceeding in pro per.<sup>2</sup> King is not eligible for attorney's fees given his self-represented status. (See *Trope v. Katz* (1995) 11 Cal.4th 274, 277; *Musaelian v. Adams* (2009) 45 Cal.4th 512, 515.) King, however, may recover costs if he prevails on the motion. (Prob. Code, § 17211, subd. (b) [authorizing award of costs]; see *Hollaway v. Edwards* (1998) 68 Cal.App.4th 94, 99 ["the probate court retains discretion to decide not only whether costs should be paid, but also, if they are awarded, who will pay and who recover them"].)

King again argues that the seven categories discussed above support his claim for relief under Probate Code section 17211. The court disagrees because King has not shown bad faith on the part of the Co-Trustees.

First, the schedule labeling errors constitute clerical errors that cause confusion but do not establish bad faith or the lack of reasonable cause. King does not dispute the substance of

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<sup>2</sup> While King asserts that he hired counsel to respond to the Petition, there is no evidence of this. (Motion, p. 26:17-18.) No substitution of counsel is on file in the record and no documents have been filed by counsel on behalf of King.

the schedules, nor does he provide evidence suggesting that the errors were intentional or made with improper motive.

Second, the post-period attorney fees are expressly disclosed on the face of the Petition. The express disclosure is inconsistent with a finding of bad faith. King offers no evidence that suggests the fees were included in bad faith or without reasonable cause.

Third, the Petition's contradiction regarding the paid or unpaid attorney's fees is merely a product of inartful pleading rather than bad faith. King provides no authority supporting the proposition that inartful pleading constitutes bad faith or a lack of reasonable cause. (*Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 ["The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived."].)

Fourth, while the Petition does not disclose the rationale for excluding the residence from the Probate Code section 15408 analysis, King's burden under Probate Code section 17211 does not stop at proving that the argument is wrong. King must also demonstrate that the argument was advanced with an improper motive or without reasonable cause. King has not met his burden here.

Fifth, the inclusion of the vehicle disbursements, as discussed above, have already been addressed and explained by the Co-Trustees. Co-Trustees submit evidence outlining the basis for their belief that the HEMS distributions were proper. (Gorini Decl., Ex. A.)

Sixth, the fee declaration does not warrant relief under Probate Code section 17211 because King has not demonstrated that the statements therein were made in bad faith or without reasonable cause. Co-Trustees' supporting declarations repeat and reaffirm the statements in the fee declaration. (Gorini Decl., ¶¶ 7-14.) Furthermore, Counsel for Co-Trustee sent an email to King on June 10, 2026, responding to King's objections to the Petition. There, counsel stated that the "obstructive" statement was intended to inform the court of King's refusal to release Co-Trustees of liability, warranting the court's involvement. (*Id.*, Ex. A.)

Finally, the inadvertent omission of itemized billing records does not establish bad faith. Counsel for Co-Trustees offered the itemized billing records via email on June 10, 2026. (Gorini Decl., Ex. A.)

Given the foregoing, King's request for attorney's fees and costs pursuant to Probate Code section 17211, subdivision (b) is DENIED. King has not offered evidence of bad faith or absence of reasonable cause. In fact, King offers no evidence beyond his Motion for Sanctions. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 767, fn. 8 ["It goes without saying that statements in a memorandum of points and authorities are not evidence."])

#### **IV. KING'S REMAINING REQUESTS FOR RELIEF**

Through his Motion for Sanctions, King also requests this court to: (1) deny the Petition in its entirety; and (2) strike the Paragraph 23 and Exhibit C from the Petition. Because these request are based on the same facts and arguments discussed above, the requests are denied for the same reasons discussed above.

## **CONCLUSION**

King's motion for sanctions pursuant to Code of Civil Procedure section 128.7 is DENIED.

King's request for attorney's fees and costs pursuant to Probate Code section 17211, subdivision (b) is DENIED.

The Court will prepare the final order.

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## Calendar Line 2

**Case Name:** In the Matter of THE BEVERLY P. RILEY TRUST  
**Case No.:** 26PR201902

### INTRODUCTION

On February 5, 2026, petitioner Michael M. Riley (“Petitioner”), current trustee of the Beverly P. Riley Trust (“Trust”) and son of now-deceased settlor Beverly Riley (“Decedent”), initiated this action by filing his Successor Trustee’s Petition for Instructions (“Petition”). Earl Kerns (“Administrator”), administrator of the estate of Thelma Snyder (“Snyder”) who was the former successor trustee and beneficiary of the Trust and who is now deceased, opposed the petition. Snyder is the named beneficiary of one or more parcels of Trust real property located on Wardrobe Avenue in Merced County (“Wardrobe Properties”).<sup>3</sup> The Petition asserts that Snyder failed to administer the Trust and failed to distribute the Trust assets upon Decedent’s death.

On July 17, 2025, Petitioner filed a Probate Code section 850 Petition for Return of Trust Property in the Merced County Superior Court (Case No. 24PR-00509, entitled *Estate of Thelma Snyder*).

Currently before the court is Administrator’s motion for change of venue. Petitioner has opposed the motion.

### DISCUSSION

#### I. THE MOTION WAS NOT TIMELY SERVED

On September 8, 2026, Administrator filed a proof of service for the motion showing electronic service on September 6, 2026. This is not timely service for a motion with a hearing date of September 23, 2026. (See Code Civ. Proc., § 1005, subd. (b) [motion must be filed and served at least 16 court days before the hearing].) Accordingly, Administrator is admonished to timely serve future filings and to follow all applicable procedural rules. For the same reason, the Court exercises its jurisdiction to consider Petitioner’s untimely opposition filed September 17, 2026. (See Code Civ. Proc., § 1005, subd. (b) [opposition must be filed and served at least nine court days before the hearing]; Cal. Rules Ct., rule 3.1300(d) [court has discretion to consider untimely filings]; *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 [same].)

#### II. LEGAL BACKGROUND

“The term ‘venue’ denotes the particular county within the state where a case is to be heard. [Citation.] In [determining] the county (or counties) where venue is proper, the courts

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<sup>3</sup> Based on the parties’ pleadings, it appears that the Trust owns or owned real properties located at 2281 and 2307 Wardrobe Avenue, as well as some agricultural land also located on Wardrobe Avenue. The parties agree that Snyder was a beneficiary entitled to property on Wardrobe Avenue but they dispute the exact portion of real property Snyder was entitled to under the terms of the Trust.

generally look to the main relief sought, as determined from the complaint as it stands at the time of the motion for change of venue. [Citation.]” (*K.R.L. Partnership v. Superior Court* (2004) 120 Cal.App.4th 490, 496-497.) “If a case is filed in a county that is not the proper venue under section 395, the defendant may move to transfer the case to a proper venue. Subdivision (a) of section 396b provides: ‘Except as otherwise provided in Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court.’ ” (*Id.* at p. 397.)

“ ‘It is a long established rule that a motion for change of venue must satisfy two requirements: (1) It must be shown the action is proper in the county to which the movant seeks transfer; and (2) it must be shown the county in which the action was filed was improper under any applicable theory (Citation).’ [Citation.]” (*Easton v. Superior Court* (1970) 12 Cal.App.3d 243, 245-246.)

Probate Code section 17005 establishes that, in general, the proper venue for commencement of a proceeding regarding a living trust is “the county where the principal place of administration of the trust is located.” (Prob. Code, § 17005, subd. (a).) Probate Code section 17002, subdivision (a) defines a trust’s principal place of administration as the “usual place where the day-to-day activity of the trust is carried on by the trustee or its representative who is primarily responsible for the administration of the trust.” “If the principal place of administration of the trust cannot be determined under subdivision (a), it shall be determined as follows: . . . [i]f the trust has a single trustee, the principal place of administration of the trust is the trustee’s residence or usual place of business.” (Prob. Code, § 17002, subd. (a)(1).)

“[T]he county where the complaint was filed is presumptively the proper county for a trial of the action, and the burden of proving otherwise rests with the party moving to change venue[.]” (*Black Diamond Asphalt, Inc. v. Superior Court* (2003) 109 Cal.App.4th 166, 170.)

### III. ANALYSIS

Administrator asserts that the major asset of the trust and the property at issue in the Petition, the Wardrobe Properties, are located in Merced County. He maintains that Thelma Snyder, the former trustee, administered the trust in Merced County for several years and he argues that the trustee cannot unilaterally change the place for proper venue by hiring counsel in Santa Clara County. Alternatively, Administrator argues that venue should be located in Merced County for convenience of the parties and witnesses.

Petitioner, on the other hand, contends that he has hired counsel to complete the day-to-day tasks of trust administration in Santa Clara County. Moreover, he asserts that the Merced County Superior Court has determined that the Wardrobe Properties are Trust assets and that this Court has already exercised jurisdiction over the Trust.

### A. VENUE UNDER PROBATE CODE SECTION 17005

At the outset, the Court notes that the determination of the principal place of administration occurs at the time a motion for change of venue is filed. “ ‘Venue is determined based on the complaint on file at the time the motion to change venue is made.’ [Citations.]” (*Malloy v. Superior Court* (2022) 83 Cal.App.5th 543, 553.) Thus, the fact that the trust may have been historically administered in Merced County is not dispositive. Additionally, Probate Code section 17002 uses the present tense when it states, “The principal place of administration of the trust *is* the usual place where the day-to-day activity of the trust *is* carried on by the trustee or its representative who *is* primarily responsible for the administration of the trust.” (Prob. Code, § 17002, subd. (a).) This suggests that where the principal place of administration is located may change over time and that the Court, in determining proper venue, is concerned with the current principal place of administration.

In *Estate of Ivey* (1994) 22 Cal.App.4th 873 (*Ivey*), the Court of Appeal explained, “The proper venue is where the principal place of administration of the trust is located. (Prob. Code, § 17005, subd. (a)(2).) This means the usual place where the day-to-day activity of the trust is carried on by the trustee or its representative who is primarily responsible for administration of the trust. (Prob. Code, § 17002, subd. (a).) . . . The fact that appellant [a defendant in the trial court] resided in Sonoma County did not give her the right to change venue under the general rule of Code of Civil Procedure section 395, subdivision (a). That section begins, ‘Except as otherwise provided by law . . .’ Here, Probate Code section 17005 defined the proper venue.” (*Id.* at p. 880.)

Assuming subdivision (a) of Probate Code section 17005 governs, Petitioner has established that the current principal place of administration is in Santa Clara County. He provides his own declaration and the declaration of his counsel showing that he hired counsel to administer the trust and that counsel performs day-to-day administration tasks, such as discussions regarding business of the trust, locating beneficiaries, and overseeing trust property, from Santa Clara County. (See Declaration of Michael M. Riley in Support of Opposition (“Riley Decl.”), ¶ 5; Declaration of Pauline Reimer in Support of Opposition (“Reimer Decl.”), ¶ 8.) Administrator, on the contrary, has provided no evidence of administration in Merced County.

The Court rejects as unsupported Administrator’s argument that Petitioner, as trustee, cannot unilaterally change the locus of trust administration by hiring an attorney to perform the administration. (See *People v. Dougherty* (1982) 138 Cal.App.3d 278, 282 (*Dougherty*) [a point asserted without argument or authority in support is without foundation and requires no discussion].) Notably, Probate Code section 17002, subdivision (a) provides, “The principal place of administration of the trust is the usual place where the day-to-day activity of the trust is carried on by the trustee *or its representative who is primarily responsible for the administration* of the trust.” Probate Code section 17002, subdivision (b) provides that, where the principal place of administration cannot be determined under subdivision (a), the residence or usual place of business of the trustee controls. While no one contends that Petitioner’s residence is the principal place of administration in this case, this suggests that the locus of the principal place of administration may change based on where the trustee resides.

## B. VENUE BASED ON A CONTROVERSY OVER LAND

As explained in *Capra v. Capra* (2020) 58 Cal.App.5th 1072, 1085 (*Capra*), on which Administrator relies, different venue statutes may apply depending on whether real property is held in the Trust and whether the Petitioner concerns real property: “Different venue statutes apply depending on whether the cabin and the permit are still held in trust and this is an action concerning the trust’s internal affairs, or whether the assets are no longer held in trust and this is an action over land. The proper venue for a proceeding regarding the internal affairs of a trust is the county of the trust’s principal place of administration. (Prob. Code, § 17005, subd. (a)(1).) In contrast, venue for an action over land that does not concern the internal affairs of a trust is generally proper in the county where the land is located. (Code Civ. Proc., § 392, subd. (a).)” In *Capra*, however, the Court did not ultimately determine the proper venue. (*Capra*, *supra*, 58 Cal.App.5th at p. 1087.)

Administrator contends that this is an action over land because the Petition seeks a determination as to title of the Wardrobe Properties. Petitioner argues this is an action concerning the internal affairs of the Trust. The Court notes that the Petition is captioned as one seeking instructions regarding the internal affairs of the Trust pursuant to Probate Code section 17200. The prayer for relief seeks (1) authority to “investigate, collect and administer the assets of the Riley Trust”; (2) authority to “investigate, collect and administer any and all claims against the Estate of Thelma Snyder and Earl Kerns, Administrator of the Snyder Estate”; (4) to determine offsets to be made against the Trust share of Thelma Snyder; (5) to determine any offsets to be made against the Trust share of Earl Kerns; and (6) to sell the Trust’s rights in the Wardrobe Properties to pay Trust debts and attorney fees.

Interestingly, Decedent passed away in 2005 and Snyder, as Decedent’s successor trustee, was tasked with distributing the assets of the Trust based on its terms. Petitioner argues, however, that Snyder did not distribute the assets and the Wardrobe Properties remain in the Trust. (Petition, ¶ 12.) Petitioner alleges that Administrator asserts in Snyder’s probate estate case in Merced County that Snyder is the main beneficiary of the Trust based on which Petitioner contends is an invalid copy of the Trust. (Petition, ¶¶ 20-22.) The Petition requests confirmation that the Wardrobe Properties and Decedent’s personal property are Trust assets and it requests permission to sell the Wardrobe Properties. (Petition, ¶ 28, prayer for relief, ¶ 6.) In his Opposition to the Petition, Administrator asserts that the Trust instrument provides that Snyder is entitled to the Wardrobe Properties. (Opposition, p. 7:8-20.)<sup>4</sup> He contends that the Trust instrument states at section 5(B)(ii) that Snyder was entitled to, inter alia, the real property described in item 2 of Exhibit A to the Trust instrument. (Opposition, pp. 2:27-3:2.) Item 2 of Exhibit A states in typed lettering: “Real property at 2281 Wardrobe Avenue, Merced, California[.]” (Petition, Ex. A, description of property omitted.) Someone has interlineated the handwritten words “and 2307” above the typed lettering such that, with the interlineations, line 2 reads, “Real property at 2281 and 2307 Wardrobe Avenue, Merced, California[.]” (*Ibid.*) The Petition pleads that the true version of the Trust instrument attached to the Petition as Exhibit 1 does not include the handwritten markings on the document.

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<sup>4</sup> The main thrust of the Opposition is that venue is proper in Merced County.

(Petition, ¶ 5.) Administrator does not argue that the Wardrobe Properties have been transferred out of the Trust.

Here, it cannot be said that the Petition does not concern the internal affairs of the Trust. The Court deciding the merits of the Petition must necessarily determine the terms of the Trust and what the named beneficiaries are entitled to. Ascertaining beneficiaries, “determining to whom property shall pass[,]” and determining questions of trust instrument construction are all issues concerning the internal affairs of a trust pursuant to Probate Code section 17200. (Prob. Code, § 17200, subd. (b)(1)&(4).) Accordingly, this is an action concerning the internal affairs of a trust and, pursuant to *Capra*, venue is proper where the principal place of administration occurs.

### C. THE MERCED COUNTY PROCEEDINGS

Administrator also argues that the Merced County Superior Court has already exercised jurisdiction over the controversy. “Generally, [w]here two [courts] have concurrent jurisdiction over the same parties and subject matter, the tribunal which first acquires jurisdiction of the parties is entitled to retain it exclusively.” (*Williams v. Superior Court* (2007) 147 Cal.App.4th 36, 53, internal citations and quotation marks omitted.) The first court to take jurisdiction is generally determined based on service of the summons. (*Ibid.*)

Administrator maintains that, on July 17, 2025, in the probate estate case for Snyder (24PR-00509), Petitioner filed a Probate Code section 850 petition in Merced asking that the Court order Administrator to immediately turn over all real and personal property belonging to the trust. (Opposition to Petition, p. 3:10-18.) Here, the Petition was not filed until February 5, 2026 and thus, Administrator contends that Merced County has exclusive continuing jurisdiction over the controversy. Administrator also filed his own competing Probate Code section 850 petition in Merced County on May 22, 2026. (Declaration of Paul Nathan Phillips (“Phillips Decl.”), ¶ 5.)

Petitioner argues that the petition he filed in Merced does not seek return of the Wardrobe Properties themselves but of the *keys* to the Wardrobe Properties as personal property. He maintains that his Merced petition sought return of items of Trust personal property in Administrator’s possession as administrator of Snyder’s estate.<sup>5</sup> Neither party has provided the Court with Petitioner’s July 2025 petition filed in Merced County.<sup>6</sup> There is no evidence as to when the notice of hearing, considered the equivalent of a summons, was served

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<sup>5</sup> Notably, assuming that Snyder died domiciled in Merced County, that county is the appropriate locus for her probate estate case. (Prob. Code, § 7051 [“If the decedent was domiciled in this state at the time of death, the proper county for proceedings concerning administration of the decedent’s estate is the county in which the decedent was domiciled, regardless of where the decedent died.”].) Thus, Merced County is arguably the proper venue for the July 2025 petition.

<sup>6</sup> Administrator’s counsel’s declaration indicates that the petition is attached as Exhibit A but there is nothing attached to the declaration. (Phillips Decl., ¶ 3.)

for the Merced County case.<sup>7</sup> (See Prob. Code, § 851 [discussing notice of hearing requirement].) As Administrator has the burden of proof, these issues must be resolved against him. (*Black Diamond Asphalt, Inc. v. Superior Court*, *supra*, 109 Cal.App.4th at p. 170 [burden of proof is on the party seeking to change venue].)

Moreover, Petitioner has provided a minute order from the Merced County Superior Court from a May 13, 2026 hearing, which states:

Discussion is had by the Court and the parties present re: 850 petition was filed to obtain the keys, possession of the property, personal items, home is still titled in the trust, Trust is filed and being handled by the Santa Clara County Court and hearing set for 6/12/2026. The Court orders that the Motion set for hearing on 6/3/2026 and orders that the motion is stayed pending the outcome of the matter in Santa Clara County. The Court sets the matter for a hearing as noted above.

(Reimer Decl., Ex. 3, formatting altered.)<sup>8</sup> Thus, even assuming Merced County initially obtained jurisdiction first, it appears that the Merced County Superior Court has determined to defer to this Court to adjudicate the Trust matters. Accordingly,

#### **D. FORUM NON CONVENIENS**

Finally, Administrator argues that the convenience of the parties and witnesses dictates that venue should be located in Merced County. “Forum non conveniens is an equitable doctrine invoking the discretionary power of a court to decline to exercise the jurisdiction it has over a transitory cause of action when it believes that the action may be more appropriately and justly tried elsewhere. [Citation.]” (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751.) “In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a ‘suitable’ place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California. The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation. [Citations.]” (*Ibid.*) “On a motion for forum non conveniens, the defendant, as the moving party, bears the burden of proof. The granting or denial of such a motion is within the trial court’s discretion, and substantial deference is accorded its determination in this regard. [Citations.]” (*Id.* at p. 752.)

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<sup>7</sup> Administrator’s counsel asserts that the notice of hearing is attached to his declaration as Exhibit B but no Exhibit B is attached and the declaration does not indicate when the notice of hearing was served. (Phillips Decl., ¶ 3.)

<sup>8</sup> It is not clear what motion the Merced County Court is referring to. No party has provided information regarding the motion that has been stayed.

Administrator provides the declaration of his counsel indicating that “the witnesses with knowledge of the facts in dispute reside in or near Merced County” and stating “Counsel to confirm and supplement the specific facts and any non-party witness identifications to be relied upon under Code of Civil Procedure section 397, subdivision (c).” (Phillips Decl., ¶ 6.) No supplement has been filed.

Petitioner, on the other hand, provides evidence that his sister-in-law and niece, whom he contends are Trust beneficiaries, reside in Santa Clara County. (Riley Decl., ¶ 5.) Petitioner also provides evidence that the intestate heirs of one of Decedent’s sons and deceased Trust beneficiary, Robert Riley, are Santa Clara County residents. (Reimer Decl., ¶ 8.)<sup>9</sup> The Court also notes that, based on the addresses listed on the Petition, Administrator lives in Galt, which is in Sacramento County, and none of the interested parties for whom addresses are listed in the Petition reside in Merced County. (Petition, ¶ 30.) One interested party’s listed address is located in San Jose, which is in Santa Clara County. (*Ibid.*)

Administrator has not met his burden to establish that Merced County is a more suitable forum. Notably, his showing speaks only to the convenience of potential witnesses and he does not name or describe a single witness living in Merced County. He provides no evidence as to the other forum non conveniens factors and his showing regarding convenience is countered by Petitioner’s showing.

## CONCLUSION

The motion for change of venue is DENIED.

The Court will prepare the final order.

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<sup>9</sup> It is not entirely clear to the Court whether Petitioner and his counsel are referring in their declarations to the same individuals. Petitioner does not name his niece and sister-in-law and his counsel does not name the intestate heirs. In any event, Petitioner has provided evidence regarding the locations of witnesses and beneficiaries while Administrator has not.